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File No.: EXP202415909

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 16, 2022, the Director of the Spanish Agency for Data Protection issued a resolution in sanctioning procedure number PS/00555/2021, followed against TECHPUMP SOLUTIONS S.L. (hereinafter, TECHPUMP). In this resolution, in addition to imposing fines for violations of Articles 5.1.a), 5.1.b), 5.1.e), 6.1, 13, 12.1, 12.2, 30.1, 8, and 25 of the GDPR and Article 22.2 of the LSSI, TECHPUMP SOLUTIONS S.L. was ordered to implement, within one month, the necessary corrective measures to align its actions with personal data protection regulations, as well as to inform this Agency within the same period about the measures adopted. Among these, it was ordered to adopt appropriate security measures to verify the age of users, ensuring that they are of legal age.

SECOND: The resolution of the sanctioning procedure was duly notified on September 16, 2022, to TECHPUMP, granting it a period of one month for the adoption of the imposed measures, as evidenced in the file.

THIRD: By means of a request dated November 18, 2022, the Director of the Spanish Agency for Data Protection required TECHPUMP to demonstrate to this Agency that it had adopted the appropriate corrective measures, in accordance with what was agreed in the aforementioned Resolution. This request was duly notified to TECHPUMP on November 21, 2022, as evidenced in the file.

FOURTH: On November 30, 2022, TECHPUMP submitted a document to this Agency, in which it stated:

Preliminary.- That by means of this document it was providing a complete response to both the request made by this Agency on November 18, 2022, which called for justification of the adequacy of its websites to the regulations, as well as to the request made on November 24, 2022, where TECHPUMP was again required to pay the fine, in light of the (non-final) denial of the precautionary measures requested by TECHPUMP in judicial proceedings.

First.- Starting with the request of November 24, 2022, in which “the receipt of the Order of November 17, 2022” is communicated and, “by virtue of it,” it is “agreed to comply in its own terms with the aforementioned Order,” it stated:

1º That Order was not final, as it was subject to the filing of a prior appeal for reconsideration, if applicable, before an appeal for cassation before Chamber III of the Supreme Court.

2º TECHPUMP had filed the aforementioned appeal for reconsideration, so it must be concluded that the Order of November 17, 2022, referred to by this Agency in its resolution of November 24, 2022, was neither final at the time of its notification nor is it today.

3º On the other hand, on October 21, 2022, TECHPUMP submitted a document to this Agency in which it expressed not only its intention to file an administrative contentious appeal against the sanctioning resolution but also provided documentary evidence of the initiation of such judicial proceedings. Therefore, said precautionary suspension must end when the judicial body rules on the requested precautionary suspension, in the terms provided therein and, evidently, with final character. Given this, it is again requested that the suspension of the execution of the resolution imposing a sanction on TECHPUMP, as well as the implementation of corrective measures, be expressly agreed upon, rendering the compliance agreement with the Order that is being appealed immediately ineffective.

Second.- Regarding the request dated November 18, 2022:

1º The data/cookies in the adult websites market, specifically the videos that TECHPUMP has, are only valuable for one thing: measuring the audience that enters a website or, in other words, to know the traffic that a website has, or in the case of advertising use, exclusively for internal advertising. Thus, in the adult market, all use of cookies for the end user does not pose any other “danger” than knowing how much audience a website has internally, but they CANNOT be used for other purposes

and there is no possibility of placing Google/Facebook or any other platform advertising on a website with this content, being something exclusive to this market.

2º Fully addressing the measures already adopted and others in the implementation phase:

A.- First, TECHPUMP has opted to close two of the five inspected websites (diverporno.com and soloporno.xxx), which represented for the company annual revenues of around (...). It is understood that it makes no business sense to incur the minimum risk of a possible sanction of an amount that multiplies by five the annual revenues of those websites in projects that have been somewhat abandoned for a long time and that have practically no audience.

B.- Regarding the other websites, TECHPUMP has had serious doubts with Cumlouder, as it is another project that has been quite abandoned, although it has somewhat more traffic, so efforts and modifications have been made in the other three websites (porn300/es, serviporno, and Cumlouder), for efficiency and speed, thus aiming to keep these three websites perfect.

-MEASURES ON THE LANGUAGE OF THE PRIVACY POLICY: Despite the fact that its

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Traffic is not predominantly in Spanish, with Spain being its number 7 country in audience and not being a relevant country for the company at any level, neither in terms of revenue nor audience. All legal texts, privacy policies, and cookie policies have been translated into Spanish by native translators of the respective languages.

- In relation to Article 5.1 a) GDPR (lawfulness, fairness, and transparency), the measures that have been taken are as follows:

BANNER FOR ACCESS TO THE WEBSITE (minors): The notice given upon entering all websites has been completely redone to make it much more visual, increasing the warning that the site is for adults and making the communication much clearer and more direct. The font size of the warning has been increased to eliminate any room for confusion. It has been corrected so that access to the website is only possible by clicking the ENTER button, eliminating any other possibility of accidental clicks on the screen and blurring the background of the website so that it is impossible to see any type of adult content. The communication regarding the cookie policy has been corrected and made more visible within the warning at the entrance of the site. The customization of cookies has been corrected and improved, allowing the user to choose any type of use or functionality they want to have with them before entering. A bug in the user registration form on the websites that allowed the selection of a date prior to 2004 has been fixed. Additionally, discussions are ongoing with the technology company YOTI, which specializes in age verification testing (<https://www.yoti.com/>), to conduct all tests, management, and research that they can in the registration form and potentially have an advanced verification system. They are again offering to hold any type of meeting and explain from their experience what types of measures would be the most efficient and appropriate in any case, as this is a very complex topic technologically and requires consensus and much communication.

USEFUL INFORMATION FOR PARENTS: A new URL has been created that provides information to parents so they have tools available today regarding search engines, filters according to each operating system (example of Porn300 replicated on the other 3 websites:

<https://www.porn300.com/es/parents/>).

TECHPUMP believes this is the best measure in the world to prevent minors from accessing any type of content, the information that parents should receive about the use of technology; there is no other measure, either humanly or technologically, better than this. They offer to advise and discuss based on their accumulated knowledge over the years about what the best technologically applied measure should be to protect the anonymity of users while preventing them from misusing the websites or allowing access to minors.

PRIVACY POLICY: The legal notice of Porn300 in Spanish has been updated

(<https://www.porn300.com/es/aviso-legal/>), the legal notice of Serviporno at C/ Jorge Juan, 6

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Spanish (<https://www.porn300.com/es/aviso-legal/>) and the legal notice of Cumlounder in Spanish (<https://www.cumlounder.com/es/legal/>). All information regarding all possible data processing that can occur when entering the website has been corrected, improved, and explained, from registered users to non-registered users, including the collection of IP addresses with the clear purpose of their use. All processing activities conducted on the website have also been corrected in the Records of Activities (RAT).

- In relation to Article 5.1 b) of the GDPR (specified purposes), the Privacy Policy has been corrected to include information about the retention period of the data, covering all possible data processing activities on the website, including IP addresses and Cookies. Additionally, all purposes of the processing activities conducted on the website have been corrected in the RAT.

- In relation to Article 5.1 e) of the GDPR (data retention), the measures taken are as follows: The Privacy Policy has been corrected and improved to provide information regarding the retention of the various types of data processed, including IP addresses and Cookies. All retention periods for the data processed in the different activities have also been corrected in the RAT, eliminating any ambiguity regarding the timeframes.

- In relation to Article 6.1 of the GDPR: The Privacy Policy has been corrected to provide information to the data subject regarding the processing of their data:

- As a NON-REGISTERED USER of a website, you are informed about the legitimacy, retention period, purpose, and your rights to revoke consent at any time, as well as the right to file a complaint with the Spanish Data Protection Agency.

- Regarding the collection of the IP address, information is provided on the uses that can be made of that data, and it is clarified that it does not depend on a legitimacy such as consent.

- Cookies: Information is provided in the Privacy Policy and reiterated in the Cookie Policies.

All retention periods for the data processed in the different activities have also been corrected in the RAT, eliminating any ambiguity regarding the timeframes, and ensuring that consent can be revoked at any time.

- In relation to Article 13 of the GDPR: The information table has been modified concerning the duty of information outlined in Article 13, incorporating the missing information:

4.1 Article 6: information on the revocation of consent (Article 7.3 GDPR) at any time, in the processing activities that are legitimized by the consent granted under Article 6.

4.2 Article 13.2.c) GDPR: information is provided regarding this right regulated in the information table, which is further expanded upon in the text.

4.3 Article 13.2.d) GDPR: information is provided in the table regarding the possibility of filing a complaint.

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Claims before the control authority, and the address of the Spanish Agency for Data Protection in Madrid is provided.

4.4 Art. 13.2 a) GDPR: The table informs about the type of processing carried out, and the data retention periods are established. These are fixed both in the Privacy Policy and in the Cookie Policy for the duration of cookie usage (in addition to other legal aspects).

- Regarding the requirement of Art. 12.1 of the GDPR: all texts have been provided in SPANISH, which means that all information related to Art. 13 has been presented in Spanish. It should be noted that before receiving the sanction proposal, this measure was fully implemented concerning the use of Spanish.

- Regarding the exercise of rights, from Arts. 12 to 22, and the request for the ID of the person wishing to exercise the rights conferred by the legislation: the procedure for requesting the ID has been

removed for all those who need to request a right recognized by law, and a procedure based on user registration data has been created. Staff has been trained through courses and informative talks about the exercise of rights and the protocol to follow in relation to them. All requests are directed to the DPO so that an effective response schedule can be established within the legally established timeframe. Users can request them via email or by postal mail free of charge as indicated. The created protocol will be applied to respond within the legally established timeframe.

- Regarding the preparation of the RAT: in accordance with Art. 30, the RAT were modified concerning the users of the websites, adapting to the data records they handle. Additionally, the data retention periods are included, and the measures taken by the entity for data protection, both organizational and technical, are extensively described in an annex indicated in the RAT since it is broader than a simple processing scheme.

- Regarding Art. 25 GDPR: the websites in question predate the concept of proactivity and the concept outlined in Art. 25 GDPR. The company has, concerning data protection policies, a series of protocols related to data protection that have been established since the creation of Techpump Solutions S.L., and that are analyzed and implemented daily. Not every day new products are created in this company, but data is processed every day, and the fact that the RAT or privacy policies are not adequately in place may give the impression that the inspector writes. However, all processes have improved, and the data processing cycles are analyzed, along with other important issues before starting to collect data. Moreover, they had a Privacy Policy in place, which, although in English, covered many of the legal aspects required by law. It is evident that the company has taken measures so that the Data Protection Officer can make the appropriate decisions to comply with proactivity and what is required by Art. 25 of the GDPR.

- Regarding the COOKIE POLICY Art. 22 LSSI: information about the cookies used by each of the websites has been incorporated, along with their purpose and duration, as well as whether they are necessary or from third parties.

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completely clear and transparent on this point with any user who wishes to verify these facts. The content is intended for adults, and therefore minors are not allowed on our websites. Furthermore, they have emphasized this point to avoid any mistakes in this regard. They verified that their banners are functioning and that they prevent minors from accessing the websites and, of course, from registering as adults. They insist once again that they are seeking to improve their processes with more robust systems that allow for a minimized risk in this aspect.

FIFTH: On December 29, 2022, TECHPUMP submitted a document to this Agency stating:

First.- Regarding the payment demand made, the precautionary measures requested by TECHPUMP are still being processed, as the appeal for reconsideration filed against the Order of November 17, 2022, has been admitted for processing, summoning this Agency for its response. Therefore, they request once again that an express agreement be made to suspend the execution of the resolution imposing a sanction on TECHPUMP, as well as the implementation of corrective measures, immediately nullifying the compliance agreement of the Order that is being appealed.

Second.- Regarding the provisions of the resolution dated November 18, 2022, they inform that in addition to the measures described in the previous document, TECHPUMP has proceeded to apply changes to the tool for managing cookies.

SIXTH: On February 10, 2023, the Director of the Spanish Agency for Data Protection made a request to TECHPUMP in the following terms:

“On November 30, 2022, and December 29, 2022, two documents from the sanctioned party requesting the suspension of the execution of the resolution due to the filing of a contentious-administrative appeal were received by this Agency. In the contentious-administrative appeal no. (...) filed before the First Section of the Contentious-Administrative Chamber of the National Court, the appellant requested the suspension of the execution of the contested resolution, therefore,

in compliance with Article 90.3 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the execution of the resolution was provisionally suspended until the judicial body ruled on it.

By virtue of the Order of November 17, 2022, of the National Court, which denies the requested precautionary measure of suspension, as well as considering the Order of January 25, 2023, which dismisses the appeal for reconsideration against the previous Order, said precautionary suspension has ended, and the resolution of this Agency is enforceable.

The deadline granted in the aforementioned resolution for the adjustment of the analyzed processing operations to the personal data protection regulations was one month.

Consequently, it is agreed to require TECHPUMP SOLUTIONS S.L. to, at C/ Jorge Juan, 6

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The deadline marked is counted from the day following the dismissal of the precautionary suspension by the National Court, to demonstrate before this Agency that appropriate corrective measures have been adopted, in accordance with what was agreed in the aforementioned Resolution." This requirement was duly notified to TECHPUMP on February 10, 2023, as evidenced in the file.

SEVENTH: On March 8, 2023, TECHPUMP submitted a written statement to this Agency, in which it stated:

First.- Regarding the payment of the sanction, it considers that it is not appropriate since the precautionary measures being processed before the Administrative Litigation Jurisdiction are not final, as an appeal for cassation will be filed before Chamber III of the Supreme Court. Therefore, it requests once again that the suspension of the execution of the resolution imposing a sanction on TECHPUMP, as well as the implementation of corrective measures, be expressly agreed upon, immediately nullifying the compliance agreement of the Order that is being appealed.

Second.- The measures already implemented, which were reported in a letter from November 2022, are reiterated, even though TECHPUMP legitimately disagrees with the order received and believes that it has always acted in accordance with the regulations (closure of two of the five inspected websites, measures regarding the language of the privacy policy, access banner to the website, privacy policy, duty of transparency, exercise of rights, and cookie policies), carrying out constant supervision and updates on the matter.

EIGHTH: According to the report obtained from the AXESOR tool on November 23, 2023, the entity TECHPUMP SOLUTIONS S.L. is a company established in 2007, with a business volume of (...) euros in 2022.

NINTH: On November 29, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against TECHPUMP for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR.

TENTH: On December 18, 2023, a written statement from TECHPUMP was received by this Agency, in due time and form, in which it summarized the following allegations against the initiation agreement:

- First: the initiation agreement violates the principle of non bis in idem
- Second: contentious-administrative prejudiciality: an administrative contentious appeal has been filed against PS/000555/2021, which gives rise to the present procedure
- Third:

o I: regarding the infringement of Article 5.1.a) of the GDPR (lack of loyalty and transparency):

☐ I.1: The information displayed in the Record of Processing Activities (RAT) of users and in the privacy policy of the websites is, as of today, absolutely compatible with the GDPR.

☐ I.2: The RAT and the privacy policy identify the data processing of unregistered users and registered members.

☐ I.3: The RAT and the privacy policy include information about purchases.

☐ I.4: The identification of the IP is solely for adapting the language through which the registered member interacts with the website, and the localization of access IPs is a necessary security measure against possible cyberattacks, particularly those known as denial of service attacks.

o II: regarding the infringement of Article 5.1.b) of the GDPR (Limitation of purpose)

☐ II.2. The mention made regarding the bodies and forces of State security has been addressed, without prejudice to the fact that such communication occurs when there is a norm with the rank of law that determines it.

☐ Furthermore, reference is made to what has already been stated.

o III: Regarding the infringement of Article 5.1.e) of the GDPR (retention of personal data): as long as the registered member does not request to unsubscribe from the service, the personal data provided will be retained. All retention periods of the data have been reviewed, adapting them to the nature of the data and current legality, and the terminology related to the retention period has also been modified, eliminating expressions related to "suppression period."

o IV: Regarding the infringement of Article 6.1. of the GDPR (obtaining personal data and lack of user consent): Acceptance of the terms and conditions entails acceptance of the privacy policy by registered members and its associated legal consequences. For this, it will be necessary to provide consent for these purposes in an individualized and express manner to avoid infringing what is provided in Article 6.1. of the GDPR. On the other hand, it should be noted that all texts have been translated into Spanish.

o V: Regarding the infringement of Article 13 of the GDPR (Lack of information to the data subject): Revisions have been made regarding the indicated aspects related to the revocation of consent. Other purposes are also included in the Privacy Policy and in the RAT. Additionally, concerning Article 6.1.b) of the GDPR, a clear distinction has been made between the legitimizing basis for the purpose of the processing. The legal basis legitimizing the IPs is based on the legitimate interest of the data controller, that is, subsection 6.1.f) of the GDPR.

o VI: Regarding the infringement of Article 12.1 of the GDPR (provision of information to the data subject in English): All texts have been updated to Spanish.

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VII: Regarding the infringement of Article 30 of the GDPR (mandatory content of the record of processing activities): The RAT has been reviewed, and data relating to the data controller and the categories of data subjects and personal data have been included.

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VIII: Regarding the infringement of Article 8 of the GDPR (On the request for consent from those holding parental authority or guardianship over minors): access by minors is not permitted, activating age verification, with a warning of the implications, and from the first access to the website through an explicit declaration via verification, without which access to the website is not possible. Additional information is provided on a second layer.

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IX: Regarding the infringement of Article 25 of the GDPR (Privacy by design): corresponding risk reports are being prepared that underpin studies on privacy by design.

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X: Regarding the Warning of adult content and the "Child Protection Policy on the Internet": the age verification mechanism is the one used on websites of larger competing companies with a presence in Spain. Additionally, a website has been created to help and protect minors from content that may be harmful to them. This week, a new verification mechanism will be included, which is being developed and will require the entry of the year of birth, a piece of information that will not be retained in any case. The Record of Processing Activities and Privacy Policy are attached.

ELEVENTH: On December 20, 2023, TECHPUMP submitted a document to this Agency in which, in summary, it stated: that in the previous allegations it had presented an incomplete version of the Privacy Policy, which it now presents in full.

TWELFTH: On January 26, 2024, TECHPUMP submitted a document to this Agency in which it stated

that it had undergone an audit conducted by (...) and attached:

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DOCUMENT ONE: certificate from the DPO of attendance at a meeting in (...) on January 15, 2024

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I. DOCUMENT TWO: internal report of main changes and improvements implemented on the websites.

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II. DOCUMENT THREE: evidence of technical test verifications for the installation of cookies according to user preferences. The system is periodically reviewed to prevent failures, thus implementing a monitoring process. In case cookies are not accepted, only functional cookies will be installed. There is a single functional session cookie that is necessary for the website to operate.

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III. DOCUMENT FOUR: proper identification of strictly necessary cookies.

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IV. DOCUMENT FIVE: Any user can report errors or improvements that can be applied to the websites regarding privacy policies, including the cookie policy.

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V. DOCUMENT SIX: Session cookies are implemented by default to improve privacy standards and restrict unwanted access.

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VI. Regarding advertising providers and transfer to third countries outside the EU: TECHPUMP only has one advertising provider, which is the Spanish company (...) that has all its information available regarding privacy policies and data processing agreements.

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VII. DOCUMENT SEVEN: a complete panel is available to carry out all cookie configurations. There is also the option to revoke consents at any time through the cookie policy.

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VIII. DOCUMENT EIGHT: implementation to prevent minors from accessing the website.

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IX. Implementation of a specific landing page for cookies.

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X. PROVISION OF CONSENT IN COOKIES. It has been proven that technically navigation is not allowed without acceptance of the cookie policy, and it is always implemented by session.

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XI. PROPER HANDLING OF COOKIES BY ADVERTISING PROVIDERS.

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X. DOCUMENT NINE: IMPLEMENTATION OF PRIVACY BY LAYERS.

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XI. DOCUMENT TEN: ADOPTION OF A PAYMENT SYSTEM IN CASE ADVERTISING COOKIES ARE REJECTED. This model is not currently contemplated on any of the websites. However, a model for migration to fully premium (paid) content is being considered.

THIRTEENTH: On January 30 and 31, 2024, TECHPUMP submitted two documents to this Agency, both with identical content to that submitted on January 26, 2024.

FOURTEENTH: On July 4, 2024, TECHPUMP submitted a document to this Agency, with the following content, in summary:

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First.- If the onboarding system published in the Press Release “(...)” published by the MINISTRY FOR

DIGITAL TRANSFORMATION AND PUBLIC FUNCTION is approved (attached as DOCUMENT ONE), TECHPUMP will adopt it immediately, without prejudice to the measures that have already been implemented, demonstrating that no mandatory onboarding procedure for adult pages has been established to date, as is evident from the Ministry's own note that is attached.

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Second.- The publication of the aforementioned press release demonstrates that to date there has been no established onboarding system for adult pages.

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Third.- That the onboarding system that is intended to be established according to the mentioned press release includes personal data that, in our understanding, constitutes a significant violation of the rights of individuals, in this case, adults, and represents an onboarding system outside the framework of the General Data Protection Regulation and consequently of the LOPD. In case of not migrating to "paid" pages when it becomes necessary.

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This regulation shall apply, even though it is considered not to be in accordance with the law.

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Fourth.- Techpump maintains an absolutely proactive attitude and proposes more effective alternative systems that comply with the privacy of individuals.

FIFTEENTH: On September 4, 2024, TECHPUMP submitted a document to this Agency, with the following content, in summary:

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FIRST. TECHPUMP is making a tremendous effort to incorporate technical systems into its websites that allow for the control and prevention of minors accessing websites with content exclusively for adults. They are closely following the advancements being made by the Ministry of Digital Transformation, in order to make an effective tool available to users and companies in the sector that is in accordance with the law. When this tool is well defined and available in the market, TECHPUMP will incorporate it into the company's websites that have adult content.

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SECOND. At the present time, nor at the time of the imposition of the sanction on TECHPUMP, was there any legal norm that determined the infringing act. Furthermore, the technological leadership for the implementation of the corresponding tool that prevents access of minors to certain digital environments with content exclusively for adults is being carried out by the Ministry of Digital Transformation, and the tool in question is still under construction, making it difficult to impose its use at the time of imposing sanctions against TECHPUMP, or currently, when this tool is neither finished, nor operational, nor widely known to companies.

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THIRD. It cites the Judgment of the Supreme Court, Administrative Litigation Chamber, in its Judgment number 1263/2024, dated July 15, Rec.5039/2022, in which it states, "The Supreme Court annuls the fine of €250,000 imposed on the National Professional Football League because the Data Protection Agency sanctioned directly for the breach of guarantees that were specified afterwards and that were not foreseeable at the time the sanctioned conduct was carried out, and it did so without having issued a prior requirement for the conduct to be adjusted to the requirements deemed necessary. (...) When the National Professional Football League developed and marketed its application, it was not reasonable to assume that the principle of transparency required a notice to appear every time the application activated the mobile microphone. (...) Therefore, the Supreme Court holds that the imposition of a sanction, based on the integration of the principle of transparency carried out by the control body, with a scope that the infringer did not previously know, nor was it reasonable for them to do so, is not compatible with a correct use of the sanctioning power, because it is not possible to directly sanction a conduct for the breach of guarantees that were specified afterwards and that were

not foreseeable at the time the sanctioned conduct was carried out.”

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FOURTH. The reading of this Judgment presents a clear analogy with the present case, as there is no specific and determined sanctioning type, and

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A new infringement occurs ex novo, breaking and violating the principle of legality, when there are no specific and determined guidelines that must be followed, which are public and generally known, due to the absence of a norm or the appropriate technological development, and consequently, these guidelines are mandatory.

LEGAL GROUNDS

I

Competence and Procedure

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Procedures in Case of Possible Violation of Data Protection Regulations

Section 2 of Article 64 "Form of Initiation of the Procedure and Duration" of the LOPDGDD establishes the following regarding procedures in case of possible violations of data protection regulations (the underlining is ours):

“2. When the procedure aims to determine the possible existence of an infringement of the provisions of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, and of this organic law, it shall be initiated by an initiation agreement, adopted on its own initiative or as a result of a complaint, which shall be notified to the interested party.

If the procedure is based on a complaint filed with the Spanish Agency for Data Protection, prior to this, it will decide on its admission for processing, in accordance with the provisions of Article 65 of this organic law.

Once the complaint is admitted for processing, as well as in cases where the Spanish Agency for Data Protection acts on its own initiative, prior to the initiation agreement, there may be a phase of preliminary investigative actions, which shall be governed by the provisions of Article 67 of this organic law.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon expiration of this period, it shall lapse, and consequently, the proceedings shall be archived.”

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According to the provisions of the transcribed article, the sanctioning procedure must be understood as lapsed if, after more than twelve months counted from the date of the initiation agreement, no

resolution of the sanctioning procedure has been issued and notified.

In the present case, the initiation agreement of the current sanctioning procedure was signed on November 29, 2023.

The twelve-month maximum duration of the sanctioning procedure would end on November 29, 2024, and currently, the procedure is still pending completion, so it must be declared lapsed.

On the other hand, Article 95.3 of the aforementioned LPACAP states:

“The lapse shall not, by itself, produce the prescription of actions by the individual or the Administration, but lapsed procedures shall not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the lapse not occurred may be incorporated into it. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed.”

Therefore, in accordance with the applicable legislation and considering the criteria for the graduation of the sanctions whose existence has been proven,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the LAPSE of the current sanctioning procedure, with number EXP202415909.

SECOND: TO NOTIFY this Resolution to TECHPUMP SOLUTIONS S.L.

Against this resolution, which concludes the administrative route in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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